

Court No. - 21

Case :- WRIT - C No. - 46235 of 2014

Petitioner :- Shiv Kumar

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Vijay Prakash Chaturvedi

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Vivek Kumar Birla,J.

Heard learned counsel for the parties.

The petitioner is disputing the correctness of the bills that has been raised against the petitioner.

As the disputes can be raised under Clause 6.5 of the Electricity Supply Code, 2005 or even otherwise the petitioner can raise grievance before the redressal forum, we otherwise find that if the petitioner is aggrieved by any assessment proceedings, the same is within the realm of the Executive Engineer under section 126 of the Electricity Act 2003 and any grievance against the order of assessment is appealable under section 127 thereof.

Consequently, we dispose of this writ petition with liberty to the petitioner to approach the Executive Engineer, Vidyut Vitaran Khand, Siddharth Nagar, respondent no. 3 for the redressal of any such grievance, in accordance with any of the provisions aforesaid and in the event, the same is entertainable, the same shall be decided within three months from the date of production of a certified copy of this order.

The writ petition stands disposed of with the said directions.

Order Date :- 1.9.2014

Puspendra